City of Providence
STATE OF RHODE ISLAND

RESOLUTION OF THE CITY COUNCIL

No.

WHEREAS, Section 209 of the Providence Home Rule Charter grants to the qualified electors of the City of Providence the right to enact ordinances by initiative, subject to limitations that the initiative power shall not extend to the budget or capital programs, or to any ordinance relating to the appropriation of money, the levy of taxes, or the salaries and benefits of City officials or employees; and

WHEREAS, Pursuant to Section 209, a petition has been filed with the Providence City Council, seeking to enact an initiative ordinance which would amend the Providence Code of Ordinance and require divesting from foreign countries conducting severe violations of human rights such as ethnic cleansing, apartheid, illegal military occupation, or genocide to be approved by the voters of the City of Providence; and

WHEREAS, Pursuant to Section 209 of the Providence Home Rule Charter, an initiative petition must be filed with the City with a full and correct copy of the title and test of the proposed ordinance in valid form and signed by five per cent of the qualified electors of the city in order to qualify a local initiative ordinance for the next general election; and

WHEREAS, According to the Providence Board of Canvassers voter records, the minimum signature requirement to qualify this ordinance for the next general election is 5549 qualified electors; and

WHEREAS, The City Clerk, through the Providence Board of Canvassers, has certified that the form of the initiative petition complies with Section 209 of the Providence Home Rule Charter and, based upon examination of the voter registration records, has ascertained that the initiative petition is signed by the requisite number of qualified electors to qualify this Ordinance for the next general election; and

WHEREAS, The Ordinance's proponents have completed all other necessary prerequisite steps to qualify and place on the ballot; and

WHEREAS, Since this Ordinance has qualified for placement on the ballot, pursuant to Section 209 of the Providence Home Rule Charter, the Providence City Council shall submit this Ordinance to the voters of Providence at the next regularly scheduled general election.

NOW, THEREFORE, IT IS RESOLVED, DECREED AND ORDERED:

That the following ballot question shall be submitted to the Rhode Island Secretary of State, as adopted on _____, 2026:

1. ***Shall the ordinance pass?***
   Yes or No?

Divesting from foreign countries conducting severe violations of human rights such as ethnic cleansing, apartheid, illegal military occupation, or genocide.

(a) Definitions. For the purpose of this article, the following definitions shall apply:

(1) "Sovereign debt" shall include foreign countries conducting ethnic cleansing, apartheid, illegal military occupation, or genocide, as subject to United Nations Security Council resolutions, findings from investigations of any UN Independent International Commission of Inquiry, findings from any United Nations Special Rapporteurs, findings from the United Nations High Commissioners for Human Rights, any U.S. court ruling, definitions in U.S. Federal policy, and/or International Court of Justice rulings and advisory opinions.

(2) "Complicit entities" shall mean corporations which directly and knowingly enable and contribute to severe violations of international humanitarian law and human rights such as ethnic cleansing, apartheid, illegal military occupation, or genocide

(3) "City funds" shall mean all funds and systems under the jurisdiction of the board of investment commissioners, including but not limited to the retirement system.

(4) “Direct investments” shall mean holdings directly managed by the fiduciaries mentioned in this section and all holdings administered directly by the city.

(b) The following types of investments shall be subject to divestment:
(1) The city will refrain, to the best of its ability, from purchasing or reinvesting in foreign sovereign bonds or government debt securities (whether publicly traded or those underwritten or sold by a corporation).
(2) The city will refrain, to the best of its ability, from investing its direct investments in complicit entities, as defined in section (a)(2) above. Existing investment in such complicit entities will be terminated, based on fiduciary duty considerations, and new investment in such entities is to be avoided.
(3) City staff will regularly use the above mentioned resources and other reputable sources to screen direct city investment for any such sovereign debt or investment in complicit entities and determine the actions to be taken, in accordance with fiduciary duty considerations.
(4) If the city has or plans to invest indirectly in either co-mingled accounts or state-managed funds, it will officially and publicly ask the managers of these accounts or funds to consider adopting the above restrictions on its investments.

(c) The provisions of this section shall apply to all investments of city funds.
(1) Exceptions: This section shall not apply when application would result in a violation of the City's fiduciary responsibilities to its pensioners and beneficiaries.

(d) Review, Reporting and Compliance:
(1) Upon passage, and annually henceforth, the City Treasurer shall review the investment portfolio of the City of Providence to the best of their ability, identifying holdings which might not conform with this section's restrictions.
(2) It shall be the duty of the City Treasurer to submit an annual report to the City Clerk no later than January 31 of each calendar year describing the status of implementation of this section's restrictions, which will be made publicly available.
(e) Severability Clause:
(1) The provisions of this Article are severable, in the event any provision is held illegal.